Dej-Udom & Associates
Attorneys At Law

2026

INTELLECTUAL PROPERTY
SCHEDULE OF FEES

Dej-Udom & Associates Ltd.
Charn Issara Tower 1, 2nd Floor, 942/69 Rama IV Road
Suriyawong, Bangrak,
Bangkok 10500 Thailand

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Fees are indicative and subject to change depending on scope and jurisdiction.

Invention Patent – Overview

Overview
An Invention Patent in Thailand protects inventions that are new, involve an inventive step, and are capable of industrial application. The term of protection is 20 years from the filing date, subject to the payment of annual maintenance fees.

Filing and Examination Procedure
A patent application is first subject to a preliminary examination to verify compliance with statutory requirements. Upon completion of the formalities, the application is published in the Patent Gazette. Following publication, a 90-day opposition period is provided, during which any interested party may file an opposition on the grounds of prior rights or lack of patentability.
A request for substantive examination must be filed within five years from the publication date or within one year from the date an opposition is finally resolved, whichever applies. During substantive examination, the invention is assessed for its patentability. The patent is granted upon a favorable examination outcome and payment of the prescribed registration fees.

Priority Claim
An Applicant who has previously filed a patent application in a foreign country may claim priority in Thailand, provided that the Thai application is filed within twelve months from the date of the first foreign filing and that the country of first filing grants reciprocal priority rights to Thailand. Where priority is validly claimed, the foreign filing date will be recognized as the priority date for the purpose of assessing patentability in Thailand. The priority claim must be made no later than the day immediately preceding the expiration of the twelve-month priority period.

Time Frame
Normally, an invention patent application is typically published within approximately one year from the filing date even if an application passes the preliminary examination without requiring any amendments. Following the filing of a request for substantive examination, the examination process may take five years or longer, depending on the technical complexity of the invention and the workload of the Department of Intellectual Property (DIP).

Supporting Documents
When filing a request for substantive examination, applicants should submit overseas search or examination reports, together with copies of corresponding foreign patent documents, if available. In practice, where an acceptable foreign search or examination report, particularly one issued by an IP5 Office, namely the European Patent Office (EPO), Japan Patent Office (JPO), Korean Intellectual Property Office (KIPO), China National Intellectual Property Administration (CNIPA), or the United States Patent and Trademark Office (USPTO), has been issued, the Examiner will generally rely on such documentation in conducting the substantive examination in Thailand. Search and examination results from the IP5 Offices are commonly accepted and given substantial weight by the Thai Patent Office, and an application that has been examined or allowed by any of these authorities may benefit from a more efficient substantive examination process in Thailand.

Invention Patent – Overview

Expedition Options
Thailand provides several mechanisms for accelerated substantive examination. The principal options are as follows:

- **Target Patent Fast-Track**: Available for applications in the fields of medical science, public health, future food, and green innovation. Eligibility requirements include filing via the DIP e-filing system, a claim set not exceeding 10 claims, and the Thai application being the first filing. A brief commercialization plan must also be submitted in support of the request.
- **ASPEC**: This mechanism relies on favourable search and/or examination results issued in English for a corresponding ASEAN application, along with the referenced claims. A claims correspondence table demonstrating alignment between the claim sets may also be submitted, although it is optional.
- **PPH** (Patent Prosecution Highway): Thailand currently participates in a bilateral PPH program with the JPO. To qualify, the corresponding JPO application must contain at least one allowable claim, and all Thai claims for which PPH is sought must "sufficiently correspond" to the allowable JPO claims. Required documentation includes:

    - Copies of the relevant JPO Office Actions (preferably those including positive outcomes), accompanied by English or Thai translations;
    - Copies of the JPO-allowed claims with English or Thai translations;
    - Copies of cited prior-art references; and
    - A claims correspondence table.

For all three mechanisms, the acceleration request must be filed together with, or subsequent to, the substantive examination request. In addition, a PPH request must be lodged before the issuance of the first Office Action by the DIP.

Annuities
Annuity fees are payable annually, commencing from the beginning of the fifth year of the patent term, calculated from the filing date. Each annuity fee must be paid within 60 days from the commencement of the relevant patent year in order to maintain the patent in force. In cases where the patent is granted after the beginning of the fifth year, all accrued annuity fees may be paid together with the registration fee. Alternatively, if the applicant elects to pay the annuity fees separately, such fees must be paid within 60 days from the date of payment of the registration fee. If any annuity fee is not paid within the prescribed period, a grace period of 120 days from the original due date is available, subject to payment of a surcharge of 30% of the annuity fee due.

Annuity Schedule (THB)

Year	Official Fee	Year	Official Fee	Year	Official Fee
5th	THB 1,000				
6th	THB 1,200	11th	THB 5,200	16th	THB 14,200
7th	THB 1,600	12th	THB 6,600	17th	THB 16,600
8th	THB 2,200	13th	THB 8,200	18th	THB 19,200
9th	THB 3,000	14th	THB 10,000	19th	THB 22,000
10th	THB 4,000	15th	THB 12,000	20th	THB 25,000

Alternatively, the Applicant may elect to pay all annuity fees in a **lump sum of THB 140,000** covering the fifth through twentieth years of the patent term.

Invention Patent – Fees

Reflecting our commitment to stability, quality, and client trust, the majority of our service fees have remained unchanged since January 1, 2023.

Services	Service Fees	Official Fees
Registration		
Filing an application to patent an invention *A discount starting from 10% is available for multiple applications filed simultaneously, depending on the number of applications*	USD 400.00	THB 500 (USD 16.00)
Claiming priority based on Paris Convention	USD 50.00	THB 50 (USD 2.00)
Late filing of documents *Applies where instructions are received less than 1 month prior to the prescribed deadline, necessitating post-filing submission of the required documents, including translations*	USD 30.00	THB 50 (USD 2.00)
Reporting an official action	-	-
Arranging publication	USD 100.00	THB 250 (USD 8.00)
Filing a request for substantive examination	USD 100.00	THB 250 (USD 8.00)
Paying registration fee and obtaining patent	USD 150.00	THB 500 (USD 16.00)
Specification EN-TH Translation (per 100 words)	USD 10.00	-
Responding to Official Action		
Preparing and filing a response to Examiner's request for further information or explanation regarding patentability	USD 450.00	-
Preparing and filing an amendment of specification or claims	USD 100.00	THB 50 (USD 2.00)
Search		
Conducting a patent search	USD 300.00 (min)	-
Annuity		
Paying annuity fee	USD 100.00	(see Annuity Schedule)

Invention Patent – Fees

Services	Service Fees	Official Fees
Recordal		
Change of owner's details	USD 120.00	THB 50 (USD 2.00)
Registration of assignment	USD 120.00	THB 250 (USD 8.00)
Registration of license	USD 150.00	THB 250 (USD 8.00)
Obtaining a replacement patent certificate	USD 100.00	THB 100 (USD 3.00)

Remarks

- Official fees stated in U.S. dollars are subject to the applicable currency exchange rate at the time of service and are therefore approximate.
- Please note that particularly complex or urgent matters may incur additional fees. In such cases, a fee estimate will be provided on a case-by-case basis.
- All prices are subject to 7% VAT and miscellaneous disbursements.

Invention Patent – Required Documents and Deadlines

Documents	Due Date	Extension
Application to Patent an Invention		
Full name, nationality, legal status (in case of juristic entity) and complete address of applicant	Date of filing	-
Specification, claims, abstract, drawings, and sequence listing (if any)	Date of filing (If priority is claimed, documents may be initially filed in any language)	(Thai translation must be submitted within 90 days from the filing date)
Notarized Power of Attorney *Legalization is not required*	Date of filing	Within 90 days from filing date
Executed Deed of Assignment / Statement of Applicant's Right	Date of filing	Within 90 days from filing date
Additional Requirements for Claiming Priority		
Priority application details (country, filing date, application number, and status)	Date of filing	-
Certified copy of the priority application (with English translation is preferred)	No later than 16 months from the priority date or Before publication	-
Recording Change of Owner's Name and/or Address		
Official document evidencing the change of name and/or address, issued by the relevant authority (e.g., Companies Registry or equivalent authority in the owner's country) *If the document is not in English, a certified English translation is required*	Date of filing	-
Updated Notarized Power of Attorney	Date of filing	-

Invention Patent – Required Documents and Deadlines

Documents	Due Date	Extension
Registration of Assignment or License		
Original assignment or license agreement, duly executed by both parties under witness of Notary Public *If the document is not in English, a certified English translation is required*	Date of filing	-
Notarized Power of Attorney for Assignee/Licensee	Date of filing	-
Copy of Patent Certificate	Date of filing	-

PCT National Phase Application – Overview

Overview
Thailand has been a member of the Patent Cooperation Treaty (PCT) since December 24, 2009. Accordingly, an international patent application filed under the PCT may enter the national phase in Thailand and be prosecuted as an invention patent under Thai Patent Law. Once it enters the Thai national phase, the application is examined and processed in accordance with the same substantive requirements applicable to a Thai invention patent, namely novelty, inventive step, and industrial applicability. The term of protection is 20 years from the international filing date, subject to the payment of annual maintenance fees.

Filing and Examination Procedure
For a PCT-based national phase application, entry into the Thai national phase must be effected within 30 months from the earliest priority date. Upon national phase entry, the application is subject to a preliminary examination to verify compliance with formal and statutory requirements. During this stage, the Examiner may request additional information, amendments, or clarifications.

After completion of the preliminary examination, the application is published in the Patent Gazette. Following publication, a 90-day opposition period is provided, during which any interested party may file an opposition on the grounds of prior rights or lack of patentability.

A request for substantive examination must be filed within five years from the publication date, or within one year from the date an opposition is finally resolved, whichever applies. During substantive examination, the invention is assessed for patentability. If the examination result is favorable and the prescribed registration fees are paid, the patent will be granted.

Time Frame
After national phase entry, a PCT-based application is typically published within approximately 12 months, provided that no major formal deficiencies arise. Following the filing of a request for substantive examination, the examination process generally takes approximately 8 to 18 months, depending on the technical complexity of the invention and the workload of the DIP. In practice, where international search or examination reports are available, the substantive examination in Thailand is often more efficient than for direct national filings.

Annuities
The annuity procedure and fee schedule applicable to a PCT national phase application are the same as those applicable to an Invention Patent.

PCT National Phase Application – Fees

Reflecting our commitment to stability, quality, and client trust, the majority of our service fees have remained unchanged since January 1, 2023.

Services	Service Fees	Official Fees
Registration		
Filing an application to patent an invention *A discount starting from 10% is available for multiple applications filed simultaneously, depending on the number of applications*	USD 400.00	THB 500 (USD 16.00)
Late filing of documents *Applies where instructions are received less than 1 month prior to the prescribed deadline, necessitating post-filing submission of the required documents, including translations*	USD 30.00	THB 50 (USD 2.00)
Reporting an official action	-	-
Arranging publication	USD 100.00	THB 250 (USD 8.00)
Filing a request for substantive examination	USD 100.00	THB 250 (USD 8.00)
Paying registration fee and obtaining patent	USD 150.00	THB 500 (USD 16.00)
Specification EN-TH Translation (per 100 words)	USD 10.00	-
Responding to Official Action		
Preparing and filing a response to Examiner's request for further information or explanation regarding patentability	USD 450.00	-
Preparing and filing an amendment of specification or claims	USD 100.00	THB 50 (USD 2.00)
Search		
Conducting a patent search	USD 250.00 (min)	-
Annuity		
Paying annuity fee	USD 100.00	(see Annuity Schedule)

PCT National Phase Application – Fees

Services	Service Fees	Official Fees
Recordal		
Change of owner's details	USD 120.00	THB 50 (USD 2.00)
Registration of assignment	USD 120.00	THB 250 (USD 8.00)
Registration of license	USD 150.00	THB 250 (USD 8.00)
Obtaining a replacement patent certificate	USD 100.00	THB 100 (USD 3.00)

Remarks

- Official fees stated in U.S. dollars are subject to the applicable currency exchange rate at the time of service and are therefore approximate.
- Please note that particularly complex or urgent matters may incur additional fees. In such cases, a fee estimate will be provided on a case-by-case basis.
- All prices are subject to 7% VAT and miscellaneous disbursements.

PCT National Phase Application – Required Documents and Deadlines

Documents	Due Date	Extension
Application to Patent an Invention		
Full name, nationality, legal status (in case of juristic entity) and complete address of applicant	Date of filing	-
Specification, claims, abstract, drawings, and sequence listing (if any) in Thai	Date of filing (Thai translation of the title, claims, and abstract required at filing)	(Full Thai specification may be submitted within 90 days from the filing date)
Notarized Power of Attorney *Legalization is not required*	Date of filing	Within 90 days from filing date
Executed Statement of Applicant's Right	Date of filing	Within 90 days from filing date
Additional Requirements for PCT		
Details of the Priority application and the international application (country, filing date, application number, and status)	Date of filing	-
Corresponding PCT international application (as filed)	Date of filing	-
RO 101	Date of filing	-
Documents available on WIPO • International Publication • International Search Report • Written Opinion of the International Searching Authority • International Preliminary Examination Report (if any)	Date of filing	-
IB 306 (if any)	Date of filing	-
RO/105 (required only if the international application has not yet been published)	Date of filing	-
Recording Change of Owner's Name and/or Address		
same as those applicable to an Invention Patent		
Registration of Assignment or License		
same as those applicable to an Invention Patent		

Design Patent – Overview

Overview
A Design Patent in Thailand protects the ornamental or aesthetic aspects of a product that are new and capable of industrial application. The term of protection is 10 years from the filing date, subject to the payment of prescribed annuities.

Filing and Examination Procedure
A design patent application is first subject to a preliminary examination to verify compliance with statutory formalities. Upon completion of the formal examination, the application is published.
During the 90-day publication period, any interested person may submit a petition or raise objections, such as claiming a better right or asserting that the design does not meet the legal requirements for protection. After the publication period, the application proceeds to substantive examination by the registar. The design patent is registered upon a favorable outcome and payment of the registration fees.

Priority Claim
An applicant who has previously filed a design application in a foreign country may claim priority in Thailand, provided that the Thai application is filed within six months from the date of the first foreign filing and the country of first filing accords reciprocal priority rights to Thailand.
The priority claim must be made no later than the day immediately preceding the expiration of the six-month priority period, and the priority documents must be submitted before publication.

Time Frame
Normally, it may take approximately 6 months from the filing date for the application to be published. Following publication, the examination and registration process typically takes an additional 6-8 months, depending on the workload of the DIP.

Annuities
Annuity fees are payable annually, commencing from the beginning of the fifth year of the patent term, calculated from the filing date. Each annuity fee must be paid within 60 days from the commencement of the relevant patent year in order to maintain the patent in force. In cases where the patent is granted after the beginning of the fifth year, all accrued annuity fees may be paid together with the registration fee. Alternatively, if the applicant elects to pay the annuity fees separately, such fees must be paid within 60 days from the date of payment of the registration fee. If any annuity fee is not paid within the prescribed period, a grace period of 120 days from the original due date is available, subject to payment of a surcharge of 30% of the annuity fee due.

Annuity Schedule (THB)

Year	Official Fee	Year	Official Fee	Year	Official Fee
5th	THB 500	7th	THB 950	9th	THB 2,000
6th	THB 650	8th	THB 1,400	10th	THB 2,750

Alternatively, the Applicant may elect to pay all annuity fees in a **lump sum of THB 7500** covering the fifth through tenth years of the design patent term.

Design Patent – Fees

Reflecting our commitment to stability, quality, and client trust, the majority of our service fees have remained unchanged since January 1, 2023.

Services	Service Fees	Official Fees
Registration		
Filing an application to patent a design *A discount starting from 10% is available for multiple applications filed simultaneously, depending on the number of applications*	USD 300.00	THB 250 (USD 8.00)
Claiming priority based on Paris Convention	USD 50.00	THB 50 (USD 2.00)
Late filing of documents *Applies where instructions are received less than 1 month prior to the prescribed deadline, necessitating post-filing submission of the required documents, including translations*	USD 30.00	THB 50 (USD 2.00)
Reporting an official action	-	-
Arranging publication	USD 100.00	THB 250 (USD 8.00)
Paying registration fee and obtaining patent	USD 150.00	THB 500 (USD 16.00)
Specification EN-TH Translation, if any (per 100 words)	USD 10.00	-
Responding to Official Action		
Preparing and filing an amendment or response	USD 150.00 (min)	THB 50 (USD 2.00)
Search		
Conducting Thai design search	USD 150.00 (min)	-

Design Patent – Fees

Services	Service Fees	Official Fees
Annuity		
Paying annuity fee	USD 100.00	(see Annuity Schedule)
Recordal		
Change of owner's details	USD 120.00	THB 50 (USD 2.00)
Registration of assignment	USD 120.00	THB 250 (USD 8.00)
Registration of license	USD 150.00	THB 250 (USD 8.00)
Obtaining a replacement patent certificate	USD 100.00	THB 100 (USD 3.00)

Remarks

- Official fees stated in U.S. dollars are subject to the applicable currency exchange rate at the time of service and are therefore approximate.
- Please note that particularly complex or urgent matters may incur additional fees. In such cases, a fee estimate will be provided on a case-by-case basis.
- All prices are subject to 7% VAT and miscellaneous disbursements.

Design Patent – Required Documents and Deadlines

Documents	Due Date	Extension
Application to Patent a Design		
Full name, nationality, legal status (in case of juristic entity) and complete address of applicant	Date of filing	-
Front, back, top, bottom, left, right and oblique representation of the design (drawing or photo), claims. and specification, if any	Date of filing	-
Notarized Power of Attorney *Legalization is not required*	Date of filing	Within 90 days from filing date
Executed Deed of Assignment / Statement of Applicant's Right	Date of filing	Within 90 days from filing date
Additional Requirements for Claiming Priority		
Priority application details (country, filing date, application number, and status)	Date of filing	-
Certified copy of the priority application	Within 90 days from filing date or before publication	-
Recording Change of Owner's Name and/or Address		
Official document evidencing the change of name and/or address, issued by the relevant authority (e.g., Companies Registry or equivalent authority in the owner's country) *If the document is not in English, a certified English translation is required*	Date of filing	-
Updated Notarized Power of Attorney	Date of filing	-
Registration of Assignment or License		
Original assignment or license agreement, duly executed by both parties under witness of Notary Public *If the document is not in English, a certified English translation is required*	Date of filing	-
Notarized Power of Attorney for Assignee/Licensee	Date of filing	-
Copy of Patent Certificate	Date of filing	-

Petty Patent – Overview

Overview
A Petty Patent in Thailand protects inventions that are new and capable of industrial application but involve a lower level of inventiveness. The term of protection is six years from the filing date, renewable for two consecutive two-year periods, for a maximum term of ten years, subject to the payment of prescribed fees.

Filing and Examination Procedure
A petty patent application is first subject to a preliminary examination to verify compliance with statutory formalities. Upon completion of the formal examination, a petty patent is granted by registration upon payment of the publication and registration fees and it is subsequently published. Within one year from the publication date, any interested person may request a substantive examination of the petty patent. If, as a result of the substantive examination, the petty patent is found not to comply with the provisions of the Patent Act, it may be canceled.

Time Frame
Under normal circumstances, a petty patent application is typically registered and published within approximately one year from the filing date.

Priority Claim
An applicant who has previously filed an application in a foreign country may claim priority in Thailand, provided that the Thai application is filed within twelve months from the date of the first foreign filing and the country of first filing accords reciprocal priority rights to Thailand.
The priority claim must be made no later than the day immediately preceding the expiration of the twelve-month priority period.

Annuities
Annuity fees are payable annually, commencing from the beginning of the fifth year of the patent term, calculated from the filing date. Each annuity fee must be paid within 60 days from the commencement of the relevant patent year in order to maintain the patent in force. In cases where the patent is granted after the beginning of the fifth year, all accrued annuity fees may be paid together with the registration fee. Alternatively, if the applicant elects to pay the annuity fees separately, such fees must be paid within 60 days from the date of payment of the registration fee. If any annuity fee is not paid within the prescribed period, a grace period of 120 days from the original due date is available, subject to payment of a surcharge of 30% of the annuity fee due.

Petty Patent – Fees

Reflecting our commitment to stability, quality, and client trust, the majority of our service fees have remained unchanged since January 1, 2023.

Services	Service Fees	Official Fees
Registration		
Filing an application to patent a petty invention *A discount starting from 10% is available for multiple applications filed simultaneously, depending on the number of applications*	USD 250.00	THB 250 (USD 8.00)
Claiming priority based on Paris Convention	USD 50.00	THB 50 (USD 2.00)
Late filing of documents *Applies where instructions are received less than 1 month prior to the prescribed deadline, necessitating post-filing submission of the required documents, including translations*	USD 30.00	THB 50 (USD 2.00)
Reporting an official action	-	-
Paying registration fee, arranging publication, and obtaining patent	USD 150.00	THB 500 (USD 16.00)
Specification EN-TH Translation (per 100 words)	USD 10.00	-
Responding to Official Action		
Preparing and filing an amendment or response	USD 150.00 (min)	THB 50 (USD 2.00)
Search		
Conducting Thai petty patent search	USD 150.00 (min)	-
Annuity		
Paying annuity fee	USD 100.00	• THB 750 (5th year) • THB 1,500 (6th year) • THB 2,000 (lump sum)
Annuity		
Filing for renewal	USD 100.00	• THB 6,000 (1st renew) • THB 9,000(2nd renew)

Petty Patent – Fees

Services	Service Fees	Official Fees
Recordal		
Change of owner's details	USD 120.00	THB 50 (USD 2.00)
Registration of assignment	USD 120.00	THB 250 (USD 8.00)
Registration of license	USD 150.00	THB 250 (USD 8.00)
Obtaining a replacement patent certificate	USD 100.00	THB 100 (USD 3.00)

Remarks

- Official fees stated in U.S. dollars are subject to the applicable currency exchange rate at the time of service and are therefore approximate.
- Please note that particularly complex or urgent matters may incur additional fees. In such cases, a fee estimate will be provided on a case-by-case basis.
- All prices are subject to 7% VAT and miscellaneous disbursements.

Petty Patent – Required Documents and Deadlines

Documents	Due Date	Extension
Application to Patent a Petty Invention		
Full name, nationality, legal status (in case of juristic entity) and complete address of applicant	Date of filing	-
Specification and up to 10 claims in Thai	Date of filing (If priority is claimed, documents may be initially filed in any language)	(Thai translation must be submitted within 90 days from the filing date)
Notarized Power of Attorney *Legalization is not required*	Date of filing	Within 90 days from filing date
Executed Deed of Assignment / Statement of Applicant's Right	Date of filing	Within 90 days from filing date
Additional Requirements for Claiming Priority		
Priority application details (country, filing date, application number, and status)	Date of filing	-
Certified copy of the priority application	No later than 16 months from the priority date or Before publication	-
Recording Change of Owner's Name and/or Address		
Official document evidencing the change of name and/or address, issued by the relevant authority (e.g., Companies Registry or equivalent authority in the owner's country) *If the document is not in English, a certified English translation is required*	Date of filing	-
Updated Notarized Power of Attorney	Date of filing	-

Petty Patent – Required Documents and Deadlines

Documents	Due Date	Extension
Registration of Assignment or License		
Original assignment or license agreement, duly executed by both parties under witness of Notary Public *If the document is not in English, a certified English translation is required*	Date of filing	-
Notarized Power of Attorney for Assignee/Licensee	Date of filing	-
Copy of Patent Certificate	Date of filing	-

Patent – Overseas

Dej-Udom & Associates offers a comprehensive Overseas patent search, filing, annuity monitoring, and maintenance services, both under the PCT and the Paris Convention system. In particular, we possess decades of experience in patent portfolio management in ASEAN.

Our services cover jurisdictions including, but not limited to:

Region	Countries / Territories
ASEAN	Cambodia; Laos; Vietnam; Indonesia; Myanmar; Singapore; Malaysia; Philippines; Brunei Darussalam
East Asia	China; Taiwan; Hong Kong; Macau; Japan; South Korea; Mongolia
Central and South Asia	India; Pakistan; Sri Lanka; Bangladesh; Nepal; Afghanistan
Oceania	Australia; New Zealand
Middle East and North Africa	Morocco; Tunisia; Egypt; Libya; Iran; United Arab Emirates (UAE); Saudi Arabia; Lebanon; Jordan; Oman; Qatar; Syria; Kuwait; Iraq; Bahrain; Israel
Africa	Nigeria; Mauritius; Kenya; Sudan; Uganda; Ethiopia; South Africa; Madagascar
Europe	European Union; Benelux (Belgium, the Netherlands, and Luxembourg); Italy; Sweden; Norway; Finland; Denmark; Switzerland; France; Germany; Spain; Austria; Czechia; Greece; Cyprus; Turkey; United Kingdom; Ireland; Malta; Poland; Latvia; Moldova; Russia; Ukraine; Azerbaijan
North America	Canada; United States; Mexico; Puerto Rico
Central and South America	Peru; Brazil; Panama; Costa Rica; Chile

*Please reach out to **ip-overseas@dejudom.com** for a case-specific quotation.*

Trademark – Overview

Legal Framework
The legal framework for trademarks in Thailand is governed by the Trademark Act B.E. 2534 (1991), as amended, which provides the foundation for trademark protection, registration, and enforcement. The Act is administered by the Department of Intellectual Property (DIP) under the Ministry of Commerce. It outlines the criteria for trademark eligibility, the registration process, and the rights conferred upon trademark owners. The Act aligns with international standards, reflecting principles under treaties like the Paris Convention and the Madrid Protocol. Trademark rights in Thailand are governed by the "first-to-file" system. This means that legal protection is granted to the party that first files a trademark application. As such, prompt registration is essential for securing rights under the Thai trademark system.

Definition of a Trademark Under Thai Law
The Thai Trademark Act defines a trademark as a photograph, drawing, invented device, logo, name, word, phrase, letter, numeral, signature, combination of colors, figurative element, sound or combination thereof used or intended to be used in connection with goods or services to distinguish them from those associated with another person's trademark.

Eligibility Criteria for Trademark Registration
To be registered in Thailand, a trademark must meet specific criteria:
- It must be distinctive.
- It must not be prohibited under the law (e.g., it cannot contain prohibited elements such as national symbols or offensive content).
- It must not be identical or similar to a trademark pending or already registered by another person.

Trademark Registration Process in Thailand
A trademark application typically takes approximately 14 to 18 months to proceed to registration if no objections or oppositions arise. The process generally involves three key steps:
- Examination by the Registrar:
  - The Registrar examines the application and may require amendments or object to the registration.
  - The applicant may respond according to the Registrar's order. In case of disagreement, the applicant is entitled to appeal the Registrar's objections or required amendments to the Trademark Committee.
- Publication and Opposition:
  - Once accepted for publication, the trademark is advertised in the Thai Trademark Gazette.
  - Any interested party may file an opposition with the Registrar during the 60-day opposition period starting from the publication date.
  - The Registrar's decision on the opposition can be appealed to the Trademark Committee, and the Committee's decision can be further appealed to the Central Intellectual Property and International Trade Court.
- Registration and Issuance of Certificate:
  - If there are no objections or oppositions (or if these are resolved favorably), the Registrar requests payment of the registration fees.
  - Upon payment, a Certificate of Registration is issued.

Priority
An applicant who has filed an application in a foreign country may claim the first foreign filing date as the filing date in Thailand provided that the Thai application is filed within six months from the first foreign filing date and the applicant is a Thai national or is based in Thailand, or is a national of or is based in a country which accords reciprocal rights to Thai nationals, or is a national of or domiciled in a Paris Convention member country.

Trademark – Overview

Specification of Goods and Services
Thailand has adopted the 11th Edition of the WIPO International Classification of Goods and Services. However, the Trademark Office applies strict guidelines requiring that goods and services be individually specified. Descriptions that are considered overly broad or vague, even if they appear in the WIPO Classification, will be rejected if they do not align with the Department of Intellectual Property (DIP) database or established examination practice. Each item must correspond to only one acceptable description under current practice, and generally only one acceptable item per line is permitted.

The following are examples of unacceptable descriptions:
- Phrases such as “excluding,” “etcetera,” or “all goods in this class.”
- Descriptions that do not provide specific and sufficiently detailed definitions.

Assignment and Licensing
Trademark assignment and license agreements must be in writing and registered with the Trademark Office to be enforceable against third parties. Such agreements must clearly identify the trademarks by description, application, registration, and class. In the case of license, the goods or services to be licensed must also be clearly identified and the agreement must include conditions ensuring the registered owner maintains effective control over the quality of the goods or services associated with the mark.

Term of Protection and Maintenance
The duration of a trademark registration is 10 years from the date of application. Owners can renew their trademarks indefinitely. A renewal application must be filed during the 90-day period immediately preceding its expiry date. A grace period of 6 months after the expiry date is available. The surcharge during the grace period is 20% in addition to the regular official fee. Though filing a declaration or evidence of use to maintain registration is not compulsory, failure to use the mark without good reason for any consecutive three-year period will render registration of the mark vulnerable to cancellation. To satisfy the use requirements, use of the mark must be by the registered owner or registered licensee. In the case of non-use, any interested party may file a cancellation petition with the Trademark Committee.

Certificate of Trademark Registration (International Registration Designated to Thailand)
As of August 2025, the Department of Intellectual Property (DIP) has revised its procedure for issuing the Certificate of Trademark Registration, transitioning from a paper-based system to an electronic one. Under the current practice, once all application details have been confirmed, the Madrid Registrar will send a notification to WIPO, after which the applicant will receive the electronic certificate directly from WIPO.

Trademark - Fast Track Options

The Department of Intellectual Property (DIP) offers a First Action Fast-Track Trademark Registration service for applicants seeking to expedite the trademark registration process. Under this service, the first Office Action is expected to be issued within 4 to 6 months from the filing date, depending on specific requirements. Below are the criteria for each option:

6-Month Option

1. **Number of Goods/Services:** The application must designate no more than 50 items of goods and/or services.
2. **Compliance with DIP Database:** The listed goods and/or services must strictly align with the acceptable descriptions provided in the DIP database.
3. **No Modifications Allowed**: Requests for amendments, assignments, inheritance of rights, or additional evidence to prove distinctiveness are not permitted.

4-Month Option

1. **Number of Goods/Services:** The application must be single-class and designate no more than 10 items of goods and/or services.
2. **Compliance with DIP Database:** The listed goods and/or services must strictly align with the acceptable descriptions provided in the DIP database.
3. **Mandatory e-Filing:**
   a. The application must be submitted through the E-Filing system for intellectual property registration
   b. All required documents, including POA, must be included at the time of filing.
4. **Required supporting documents:**
   a. A trademark usage plan or marketing plan explaining the need for expedited processing.
   b. Evidence of a prior similarity search conducted using:
      i. DIP's search system
      ii. TMview
      iii. Global Brand Database
      iv. Any findings of similar marks must be disclosed and included with the application.
5. **No Modifications Allowed:** Requests for amendments, assignments, inheritance of rights, or additional evidence that could extend the review timeline are not permitted.

Please note that this service is in the early stages of implementation, and the DIP reserves the right to make any changes it deems necessary or appropriate.

Trademark - Fees

Reflecting our commitment to stability, quality, and client trust, the majority of our service fees have remained unchanged since January 1, 2023.

Services	Service Fees	Official Fees
Availability Search		
Clearance Searching for a Word/Device Mark *For a composite mark, the fee will be based on the number of searches required for each element included in the mark*	USD 150 (single-class application)	Clearance Searching at DIP (if requested) THB 200 [USD 7] per hour (Each extra hour is counted as one hour)
	USD 50 per additional class (multi-class application)	
Registration		
Reviewing the specification prior to the filing	-	-
Preparing and filing Thai national trademark application for registration *A discount starting from 10% is available for multiple applications filed simultaneously, depending on the number of applications*	USD 300 (single-class application)	- 1 to 5 items of goods or services in each class: THB 1,000 [USD 32] per item - More than 5 items of goods or services in each class: THB 9,000 [USD 283] per class
	USD 210 per additional class (multi-class application)	
Preparing and filing international trademark application under the Madrid Protocol (covering no more than 3 classes) for registration *A discount starting from 10% is available for multiple applications filed simultaneously, depending on the number of applications*	USD 450 (per one designated country included in the application)	THB 2,000 [USD 63] plus international fees which vary depending on the designated countries and the number of classes at the time of filing *(The applicable international fees will be advised upon receipt of complete application details)*
	USD 300 (per each additional designated country)	
Disclaim (if any)	USD 50 per application	-
Priority claim (if any)	USD 50 per application	-
Color claim (if any)	USD 50 per application	
Filing an explanation letter, evidence of use and any other supporting evidence or document (if any)	USD 80 per application	-

Trademark - Fees

Services	Service Fees	Official Fees
Reporting an office action	-	-
Paying registration fees, obtaining, and forwarding certificate of registration	USD 120 (single-class application)	- 1 to 5 items of goods or services in each class: THB 600 [USD 19] per item - More than 5 items of goods or services in each class: THB 5,400 [USD 170] per class
	USD 84 per additional class (multi-class application)	
Responding to an office action (if any)		
Filing a response regarding the specification amendments (per application) *The fee will be based on total final specification to be filed including rejected and non-rejected item*	(1) USD 120 for up to 50 items	THB 200 [USD 7]
	(2) USD 200 for 51-200 items	
	(3) USD 300 for 201-400 items	
	(4) USD 400 for 401-600 items	
	(5) USD 500 for more than 600 items	
Filing a response regarding other amendment requirements	USD 120	THB 200 [USD 7]
Filing a response to the requirement of consent	USD 120	-
Filing an explanation letter, evidence of use and any other supporting evidence or document	USD 120 – 300	-
Opposition, Appeal and Cancellation		
Filing a notice of opposition	USD 450	THB 2,000 [USD 63]
Filing a counter statement	USD 450	-
Filing an appeal to the Trademark Committee and reporting the decision	USD 500	- Appeal according to Section 16, 17, 27 or 37: THB 4,000 [USD 126] per section - Appeal according to other sections: THB 2,000 [USD 63] per section

Trademark - Fees

Services	Service Fees	Official Fees
Opposition, Appeal and Cancellation		
Filing a cancellation petition to the Trademark Committee (Administrative level) and reporting the decision	USD 650	THB 1,000 [USD 32]
Contesting cancellation petition (Administrative level) and reporting the decision	USD 500	-
Renewal		
Filing application for renewal of a mark and obtaining certificate of registration *A discount starting from 10% is available for multiple applications filed simultaneously, depending on the number of applications*	USD 150	- 1 to 5 items of goods or services in each class: THB 2,000 [USD 63] per item - More than 5 items of goods or services in each class: THB 18,000 [USD 566] per class
Change of Owner's Name or Address		
Recording change of owner's details	USD 120 per one registration	THB 400 [USD 13]
	USD 100 per additional registration	THB 400 [USD 13]
Assignment and Merger		
Recording assignment or merger (using standard form)	USD 200 per one registration	THB 2,000 [USD 63]
	USD 100 per additional registration subject to the same agreement	THB 2,000 [USD 63]

Trademark - Fees

Services	Service Fees	Official Fees
Licensing		
Recording a license agreement (using standard form)	USD 250 per one mark	THB 1,000 [USD 32]
	USD 100 per additional mark subject to the same agreement	THB 1,000 [USD 32]
Paying the registration fee for a trademark license agreement	USD 50 per mark applies for submitting a notice with DIP, only when there are multiple applications in the same agreement	THB 2,000 [USD 63]
Cancellation of a license registration	USD 80 per mark per class	THB 400 [USD 13]
Infringement		
Drafting Cease and Desist letter	USD 200	-
Providing statement to relevant officials	USD 120	-
Miscellaneous		
Filing a petition requesting a replacement certificate	USD 100	THB 200 [USD 7]
Filing other petitions	USD 100	THB 200 [USD 7]
Translation from Thai to English	USD 15 per page (Official DIP Application Forms, Prescribed Wording, and Certificates)	-
	USD 30 per page (Other Documents e.g. Case-Specific Written Statements)	-
Translation from English to Thai	-	-

Remarks

- Official fees stated in U.S. dollars are subject to the applicable currency exchange rate at the time of service and are therefore approximate.
- Please note that particularly complex or urgent matters may incur additional fees. In such cases, a fee estimate will be provided on a case-by-case basis.
- All prices are subject to 7% VAT and miscellaneous disbursements.

Trademark - Overseas

Dej-Udom & Associates offers a one-stop Overseas trademark search, filing, renewal, and other relevant maintenance services, suitable for clients with a multinational trademark portfolio or clients looking to grow their brand overseas. In particular, we possess decades of experience in Trademark portfolio management in ASEAN.

Our services cover jurisdictions including, but not limited to:

Region	Countries
ASEAN Countries	Cambodia; Laos; Vietnam; Indonesia; Myanmar; Singapore; Malaysia; Philippines; Brunei Darussalam; Timor-Leste (East Timor)*
East Asia	China; Taiwan; Hong Kong; Macau; Japan; South Korea; Mongolia
Central & South Asia	India; Pakistan; Sri Lanka; Bangladesh; Nepal; Afghanistan; Maldives**
Oceania	Australia; New Zealand
Middle East & North Africa	Morocco; Tunisia; Egypt; Libya; Iran; United Arab Emirates (UAE); Saudi Arabia; Lebanon; Jordan; Oman; Qatar; Syria; Kuwait; Iraq; Bahrain; Israel
Africa	Nigeria; Mauritius; Kenya; Sudan; Uganda; Ethiopia; South Africa; Madagascar
Europe	European Union; Benelux (Belgium, the Netherlands and Luxembourg); Italy; Sweden; Norway; Finland; Denmark; Switzerland; France; Germany; Spain; Austria; Czechia; Greece; Cyprus; Turkey; United Kingdom; Ireland; Malta; Poland; Latvia; Moldova; Russia; Ukraine; Azerbaijan
North America	Canada; United States; Mexico; Puerto Rico
Central & South America	Peru; Brazil; Panama; Costa Rica; Chile

Please reach out to **ip-overseas@dejudom.com** for a case-specific quotation.

***Timor-Leste** currently does not have formal or statutory trademark laws, meaning that it currently lacks certain legal bases for trademark protection available in many other jurisdictions around the world. Brand owners in the non-statutory jurisdictions can publish cautionary notices to help safeguard and enforce their trademark rights.

On 11 November 2025, **Maldives adopted and ratified its first comprehensive Trademark Act (Law No. 19/2025) to replace the current cautionary notice system. The law will take effect on 11 November 2026. Trademark owners who currently enjoy the protections under the old cautionary notice regime will have to re-register their trademarks within 12 months after the aforementioned date. Regulations covering fees and procedures are expected to be published by May 2027.

Contact Information

Dej-Udom & Associates

942/69 Charn Issara Tower I, 2nd FL, Rama IV Road,

Suriyawong, Bangrak, Bangkok 10500, Thailand

Tel: +66 2 233 0055 **Website**: www.dejudomlaw.com

General Inquiries: dej-udom@dejudom.com

Corporate & Commercial: corporate@dejudom.com

Litigation & Dispute Resolution: litigation@dejudom.com

Intellectual Property (Thailand): ceo_ip@dejudom.com

Intellectual Property (Overseas): ip-oversea@dejudom.com

Immigration & Work Permits: immigration-employement@dejudom.com

This schedule of fees is provided for informational purposes only and is subject to change without notice.
All fees quoted are in THB and USD unless otherwise specified.
Please contact us for more information.

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